



10th Legislature

Tribal Law 10-005

This is to establish, and to clarify, employee rights, and to ensure employee protection as said rights and needs for protection relate to political activity.

IN THE CHICKASAW TRIBAL LEGISLATURE

July 16, 1993

Mrs. Lisa SHEPHARD presented the following.

SEC.1. This is to establish, and to clarify, employee rights and to ensure employee protection as said rights and needs for protection relate to political activity.

Be it enacted by the Tribal Legislature of the Chickasaw Nation here assembled that this act be cited as the Chickasaw Nation Employee's Political Rights Reform Act of 1993.

SEC.2. The Legislature finds that:

- (1)** A need exists for the Chickasaw Tribal Legislature to establish and protect the right of a tribal employee, and any member(s) of his family, to express his/their opinion, both privately and publicly, on political issues and candidates; and
- (2)** A need exists for the Chickasaw Tribal Legislature to establish and protect the right of a tribal employee, and any member(s) of his family, not to be subjected to the exercise of any coercion, solicitation, influence, interest, or political activity, of any sort, directly or indirectly, by any candidate, elected official, appointed official, other employee, or any agent of any candidate, elected official, appointed official, or other employee, while on duty status, whether in assigned work areas or not.

SEC.3. The basis of authority for this act is Article VI, Section 1, of the Constitution, wherein the Legislature is granted the legislative authority of the Chickasaw Nation, and in Article VII, Section 4, wherein the Legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation, and Article IV, Section 4, wherein the right of every citizen to speak, write, or publish his opinions is protected, provided said right is not abused, and Article XIII Section 1, wherein the Tribal Legislature may confer jurisdiction upon the Judicial Department. The Legislature, with the adoption of this act, hereby:

- (A) repeals all previous resolutions, laws and enactments which pertain to employee political rights,
- (B) amends all previous resolutions, laws and enactments which pertain to tribal employees,
- (C) amends all previous resolutions, laws and enactments which pertain to appointed officials,
- (D) amends all previous resolutions, laws and enactments which pertain to elected officials,
- (E) confers other jurisdiction upon the Judicial Department, and
- (F) designates an offense that shall place an elected official in jeopardy of sanction.

SEC.4. For the purpose of this act:

- (A) "Political activity," as used herein, shall mean any activity whatsoever that communicates a political message of any sort, directly or indirectly, regarding tribal politics.
- (B) "Assigned work areas," as used herein, shall mean any physical location on any real property where any persons are working or conducting business of any sort for compensation by the Chickasaw Nation.
- (C) "Duty status," as used herein, shall mean any work being done or any business being conducted, of any sort, by any person, in any location, for compensation by the Chickasaw Nation.
- (D) "Employee," as used herein, shall mean any person, except for elected officials, full-time or part-time,

employed or contracted by, and receiving any compensation from, the Chickasaw Nation.

- (E) "Compensatory time," as used herein, shall mean time and a half off, with pay, in exchange for time in excess of forty (40) hours per calendar week.
- (F) "Agent," as used herein, shall mean any person who is designated by, authorized by, represents, or acts for or in the place of, another.
- (G) "Required," as used herein, shall mean directed, ordered, demanded, instructed, commanded, compelled, requested, or coerced, as a condition of continued employment.
- (H) "Violation of this act," as used herein, shall mean any action of any sort, directly or indirectly, calculated to curtail any rights or protections established by this act.

SEC.5. With this act, the Chickasaw Tribal Legislature:

- (1) Establishes and protects the right of a tribal employee, and any member(s) of his family, to express his/their opinion, both privately and publicly, on political issues and candidates for public office;
- (2) Establishes and protects the right of a tribal employee, and any member(s) of his family, not to be subjected to the exercise of any coercion, solicitation, influence, interest, or action of a political nature, of any sort, directly or indirectly, by any candidate, elected official, appointed official, other employee, or any agent of any candidate, elected official, appointed official, or other employee, while on duty, whether in assigned work areas or not;
- (3) Establishes and protects any tribal employee from:
 - a. Being required to engage in any political activity whatsoever, directly or indirectly, while on duty status, whether in assigned work areas or not;
 - b. Being required to engage in any political activity whatsoever, directly or indirectly, while in assigned work areas, whether on duty status or not;
 - c. Being required to use his official authority or influence over subordinates, directly or

indirectly, for the purpose of affecting the result of any tribal election;

- d. Being required to engage in any political activity whatsoever, directly or indirectly, while on compensatory time off or while on leave status with pay;
 - e. Being required to contribute compensation, gifts, loans, entertainment, favors, time, goods, services, ideas, information, influence, opinions, or any other thing of any value, directly or indirectly;
 - f. Being required to solicit, receive, collect, handle, disburse or account for any funds whatsoever for a partisan political purpose;
 - g. Being required to organize, promote, or participate in, a fund-raising activity for a partisan political purpose, whether directly or indirectly;
 - h. Being required to announce his candidacy for a political office until after resigning;
 - i. Being required to act as a watcher;
 - j. Being required to endorse or oppose a candidate for public office in any political advertisement, broadcast, campaign literature, or any similar material; and
- (4) Establishes and protects the above rights of a tribal employee and any member(s) of his family, if said employee or any member(s) of his family is an elected official.

SEC.6. Any political activity not proscribed by this act shall be protected as an employee's right.

- a. Any coercion, influence, interest, or action of any sort, directly or indirectly, by any candidate, elected official, appointed official, other employee, or the agent of any candidate, elected official, appointed official, or other employee, that is calculated to curtail said right and/or any rights and protections established by this act, shall be a violation of this act.
- b. Any violation of this act by any elected official,

or by the agent of said elected official, shall place said elected official in jeopardy of sanction.

- c. Any violation of this act by any candidate other than an elected official, or by the agent of said candidate, shall be an offense for which said candidate or agent shall be barred from all assigned work areas until the election for which said candidate has filed is over.
- d. Any violation of this act by any appointed official, or by the agent of said appointed official, shall be cause for removal of said appointed official.
- e. Any violation of this act by any employee, or by the agent of said employee, shall result in the immediate dismissal of said employee.

SEC. 7. The Tribal Court shall have the jurisdiction to hear a Petition, filed by an employee of the Chickasaw Nation, based upon violation(s) of the Chickasaw Nation Employee's Political Rights Act.

The Court shall, by majority vote, determine the validity of the Petition. By its ruling, the subsequent enforcement of this act shall be carried out by the use of tribal and/or federal officials or policemen.

SEC. 8. Should a question arise regarding the administration or implementation of this act, the Tribal Legislature shall generate an amendment or an addendum to this act addressing same, to become part of this act upon approval.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on July 16, 1993, by a vote of 10 ayes, 0 nays, and 2 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:

David Brown, Lt. Governor
The Chickasaw Nation

Date: _____

Lt. Governor Brown chose not to sign this bill. In accordance with Tribal Law, this bill is offically law as of July 23, 1993.